

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

**JACQUELINE KHAMSY PALAFOX, aka JACQUELINE KHAMSY
BOUNPONECHANNITA, Respondent**

Agency Case No. 2-508236385

OAH No. 2024070877

PROPOSED DECISION

Matthew S. Block, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, heard this matter on February 10 through 12, 2025, by videoconference from Sacramento, California.

Seth A. Curtis, Deputy Attorney General, represented Mary Vixie Sandy (complainant), Executive Director of the California Commission on Teacher Credentialing (Commission).

Emily Power, Attorney at Langenkamp, Curtis, Price, Lindstrom & Chevedden, represented Jacqueline Khamsy Palafox, also known as (aka) Jacqueline Khamsy Bounponechannita (respondent), who was present.

Evidence was received, the record closed, and the matter submitted for decision on February 12, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On May 17, 1996, the Commission issued respondent an Emergency 30-Day Substitute Teaching Permit, which expired on June 1, 1997. On July 9, 1996, the Commission issued respondent an Emergency Long Term Single Subject Teaching Permit, which expired on July 1, 1999.

2. On July 16, 1999, the Commission issued respondent a Clear Multiple Subject Teaching Credential (credential). The credential expired on August 1, 2024, and has not been renewed.

3. On May 22, 2024, the Board's former Deputy Director signed and thereafter filed the Accusation on complainant's behalf. The Accusation alleges cause to discipline respondent's credential for: (1) unprofessional conduct; (2) evident unfitness for service; (3) moral turpitude; and (4) immoral conduct. More specifically, the Accusation alleges that respondent brought methylenedioxymethamphetamine (MDMA) into her classroom and left it unattended in a drawer. As an aggravating factor, the Accusation also alleges respondent's conduct was surrounded by bad faith, dishonesty, or violation of the law governing educators.

4. Respondent timely filed a Notice of Defense to the Accusation. The matter was set for evidentiary hearing before an ALJ of the OAH, an independent adjudicative agency of the State of California, pursuant to Government Code section 11500 et seq.

Complainant's Evidence

5. At all relevant times, respondent was employed by the Tracy Unified School District (TUSD) as a teacher at Kimball High School (Kimball) in Tracy, California. William Maslyar has been the principal at Kimball since fall 2022 and testified at hearing.

6. On October 5, 2022, a teacher approached Mr. Maslyar and told him that respondent was "down" in the Kimball parking lot. He did not know what the teacher meant so he ran out into the parking lot, where he found respondent kneeling down on one knee with her head facing the ground. He asked respondent if she was okay but received no response. Paramedics were called, and respondent was transported to the hospital for evaluation.

7. Mr. Maslyar reviewed school surveillance footage to try and determine what had happened to respondent. When he did, he saw respondent staggering across campus as she walked toward the parking lot. When she arrived in the parking lot, she fell to the ground, stood up, and fell to the ground again.

8. The following day, at approximately 5:00 p.m., a Kimball teacher texted Mr. Maslyar about a conversation she overheard earlier in the day between two students. According to the teacher, one of the students said he saw respondent obtain alcohol from a cabinet in her classroom. Based on the text message, and the surveillance camera footage of respondent's behavior the day before, Mr. Maslyar decided to search her classroom. Assistant Principals Maureen Riley and David Doyle agreed to assist.

9. Ms. Riley testified at hearing. When she and Mr. Doyle accompanied Mr. Maslyar to respondent's classroom, she opened a drawer in a table at the front of the

room next to respondent's desk. Inside, she located a ziplock bag filled with various pills. Some of the pills were sealed in blister packs and others were loose in the bag, including five small, round, white pills. Those five pills had no markings, and neither Mr. Maslyar nor the assistant principals were able to tell what they were. Mr. Maslyar took the bag from Ms. Riley and locked it in his office overnight.

10. The next morning, Mr. Maslyar took the bag of pills to School Resource Officer Steve Flores's office to see if Officer Flores could identify the five pills that were loose in the bag. A short time later, Officer Flores told Mr. Maslyar he was unable to identify the pills, and he believed they were likely either herbal supplements or illicit drugs. Mr. Maslyar locked the bag in a cabinet in his office and called TUSD Associate Superintendent of Human Resources (HR) Tammy Jalique to tell her about the pills.

11. Ms. Jalique testified at hearing. At approximately 1:30 p.m. on October 7, 2022, she went to Kimball, picked up the bag of pills from Mr. Maslyar, and took it back to the TUSD HR office. She photographed the bag and then placed it in an envelope which she sealed with tape and locked it in a secure vault in the HR office. Ms. Jalique also contacted respondent and directed her not to return to campus until she provided the administration with a physician's note stating she was medically cleared to return to work.

12. Ms. Jalique and Mr. Maslyar met with respondent on November 16, 2022. Respondent's Tracy Educator's Association representative was also present. During the meeting, Ms. Jalique showed respondent the photograph she took of the ziplock bag and respondent admitted all the pills depicted in the photograph belonged to her. Ms. Jalique pointed to the five white pills and asked respondent what they were. Respondent said the pills were "vitamins," including iron pills and a hormonal supplement, but then said she could not tell what type of pills they were. She also

explained she was taking epilepsy medication, but that the epilepsy medication was not in the bag with the other pills.

13. On November 18, 2022, Ms. Jalique retrieved the envelope containing the bag of pills from the secure vault in the HR office. When she did, the envelope was still sealed and did not appear to have been tampered with. Ms. Jalique took the pills to be tested at Premier Urgent Care (Premier), a local medical facility in Tracy. Premier performs biological fluid sample testing and has assisted TUSD in the past with expedited presumptive testing when students or employees are believed to be under the influence of alcohol or drugs at school.

14. Marci Paradiso is the operations manager at Premier. She has worked in the medical industry for over 40 years and tested many biological fluid samples for drugs and alcohol. Ms. Paradiso testified at hearing.

15. When Ms. Paradiso received the envelope from Ms. Jalique, it was sealed. She opened the envelope, removed two of the five white pills, and showed them to Jagdish Patel, M.D., who works as a physician at Premier. The Code of Federal Regulations requires that drug products in solid oral dosage form be clearly marked or imprinted with a code which permits the unique identification of the drug product and its manufacturer or distributor. Because the pills had no markings or imprints, Dr. Patel was unable to visually identify what they were, so he authorized Ms. Paradiso to perform a presumptive test of the pills.

16. Premier typically uses the Abbott Alere 10 Panel Drug Test Dip Card (Abbott test) to conduct presumptive tests of urine samples. When a sample is received, the person performing the test submerges the end of the card into the sample and then removes it. Presumptive positive results typically appear on the card

within five minutes. Although the results are presumptive, Ms. Paradiso estimates that confirmatory tests reveal that the Abbott test is accurate 99 percent of the time.

17. Ms. Paradiso took the two pills and dissolved them in water. She then submerged the Abbott test card into the solution. After several minutes, a result appeared on the card indicating that the solution tested positive for MDMA. MDMA is an illegal, synthetic, psychoactive drug with a chemical structure similar to the stimulant methamphetamine and the hallucinogen mescaline.

18. Dr. Patel testified at hearing. He has been a physician for over 50 years and a certified medical review officer (MRO) since the 1980s. As an MRO, he is qualified to interpret and certify biological fluid sample tests for the presence of alcohol and drugs.

19. Dr. Patel explained that the Abbott test is an immunoassay test. Antibodies are introduced to a biological fluid sample, and if a drug antigen is present in the sample, the antibodies will bind to it and indicate a visible result on the card. Dr. Patel acknowledged that the Abbott test is intended to test for the presence of controlled substances in urine, and that it only provides a presumptive result. However, he has no reason to doubt the accuracy of the test, or Ms. Paradiso's ability to use it to test the solution after she dissolved the two pills in water. He also explained that dissolving the pills in water would not alter the nature of the pills or compromise the accuracy of the immunoassay test, which has increased "tremendously" over the last decade. In all his years of medical practice, Dr. Patel has never seen a presumptive immunoassay test proven wrong by a subsequent gas chromatograph mass spectrometer (GCMS) confirmatory analysis.

20. Dr. Patel confirmed the positive test in a letter to TUSD dated November 22, 2022. In the letter, he also wrote the following:

Concerning MDMA/ecstasy, which is structurally related to amphetamines, cross-reactions in immunoassays and false-positive MDMA tests have been reported for trazadone, metoprolol, and the fenofibrate metabolite, fenofibric acid.

21. Dr. Patel explained he obtained information about the false positives he mentioned in the letter by reference to medical literature. He does not believe the pills Ms. Paradiso tested were trazadone because the tablets did not feature the unique markings required by the Code of Federal Regulations. He has no reason to doubt the accuracy of the Abbott test in this case, or Ms. Paradiso's ability to perform it correctly.

22. When Premier tests a biological fluid sample obtained on site, they typically send the sample to another lab for a GCMS confirmatory analysis. TUSD asked Premier to send the solution for GCMS confirmation, but they declined to do so because the solution was not a biological fluid sample obtained on site, and because they could not document a chain of custody for the pills from respondent's classroom to the location in the facility where they were tested.

Respondent's Evidence

RESPONDENT'S TESTIMONY

23. Respondent testified at hearing. She knew she wanted to be a teacher in third grade. She received degrees in Spanish and biology from Whittier College before earning her teaching credential at California State University, San Bernardino. She taught for approximately 29 years. She has not taught since resigning from Kimball but

would like to return to teaching. She has not attempted to renew her credential due to the pending disciplinary action.

24. Respondent occasionally drinks socially. However, she has never possessed or consumed alcohol at school. She has never used illicit drugs, and did not know what MDMA is until her daughter explained it to her after learning of the test results.

25. Respondent was prescribed trazadone for insomnia in October 2020. The prescription was discontinued in September 2021, though she continues to take the remaining pills when necessary to help her sleep. She does not recall whether the pills have any stamps or other markings on them. The last time she took trazadone was approximately two weeks prior to hearing. Respondent suffered a seizure in March 2022. She was prescribed seizure medication, but never brought it to school.

26. Respondent does not remember what preceded the episode in the parking lot on October 5, 2022. She knows she passed out and recalls a paramedic asking if she knew where she was but nothing else. Medical records received in evidence at hearing indicate that respondent had suffered a seizure.

27. Respondent has taken daily iron pills since her first pregnancy. In October 2022, she was also taking Estroven and Azo on a regular basis and would occasionally take green tea pills for energy in the afternoon. It was not unusual for her to bring pills to school in a ziplock bag. She placed the bag in the table drawer because the table was next to her desk at the front of the room and within her control.

28. During the fall 2022 semester, the second period of the day was designated as respondent's preparatory period, when no students were present in the classroom. She typically took vitamins, iron, and any prescription or over the counter

medications during the preparatory period because it was when she ate breakfast. She thinks the pills which tested positive for MDMA were iron or folic acid pills. However, she also believes it is possible she brought her trazadone pills to work by mistake, and that they may have resulted in a false positive test for MDMA.

29. Respondent resigned from TUSD for personal and health reasons unrelated to the pills found in her classroom, effective May 31, 2023. She was not aware the two pills tested positive for MDMA until after she resigned.

CHARACTER WITNESS TESTIMONY

30. Judy Khoutsavanh is a family friend who has known respondent since the 1980s. She last saw respondent approximately three years ago, but they regularly speak on the telephone. She has never seen respondent under the influence of illegal drugs and does not believe respondent is a drug user. She described respondent as a leader in the Lao community.

31. Vongsa Lasamay is respondent's younger brother. He has never known his sister to use drugs. On the contrary, she would regularly lecture him when he was growing up about the dangers of using drugs. Mr. Lasamay now sees respondent only "once in a blue moon" and it has been over 20 years since he observed her teaching in a classroom. Nonetheless, he believes she is passionate about teaching and should be allowed to keep her credential.

32. Chris Munger has been an English teacher at Kimball since 2011 and shared a classroom with respondent for several years. He believes respondent is a competent teacher. He never saw respondent bring drugs or alcohol to school and never saw respondent under the influence of drugs or alcohol. Respondent told him the pills that tested positive for MDMA did not belong to her.

33. William Berry testified at hearing. Respondent's daughter Emmeleine Khoonsirivong is his closest friend. He has known respondent for approximately five years. He has never seen respondent possess or use illegal drugs, and he has never suspected that she was under the influence of illegal drugs. He did not attend Kimball, and he is not familiar with respondent's teaching abilities.

34. Ms. Khoonsirivong also testified at hearing. She has never seen her mother in possession or under the influence of illegal drugs. She was suffering from seizures at the time she was placed on leave at Kimball.

TOXICOLOGY TESTIMONY

35. Minh X. Tran is a forensic toxicologist and the laboratory director of Drug Detection Laboratories, Inc., in Sacramento. Mr. Tran received a Bachelor of Biological Sciences degree in 2008 from California State University, Sacramento. He estimates he has tested between 10,000 and 15,000 pills and powders in his career, at least half of which were found to contain MDMA. However, every pill he has ever tested that was determined to be MDMA had some sort of imprint or marking on it.

36. Immunoassay tests such as the one at issue in this case have existed for many years. They are typically used to test for the presence of drugs in urine, although they can be used to test drugs dissolved in water. Mr. Tran has never used the Abbott test. He believes immunoassay tests such as the Abbott test are reliable, but that their results should be confirmed by a GCMS confirmatory analysis whenever possible. He is unaware of any studies suggesting that vitamins or iron pills can produce a false positive result for MDMA.

LETTERS OF SUPPORT

37. Respondent submitted numerous letters of support, several of which were written by witnesses who testified on respondent's behalf at hearing. They generally describe respondent as a well-known and respected member of the Lao community, a hardworking single mother, and a dedicated teacher.

Analysis

38. Complainant bears the burden of proving by clear and convincing evidence that the allegations set forth in the Accusation are true, and that they constitute cause to discipline respondent's credential. While four different causes for discipline are alleged, they all pertain to the allegation that respondent brought MDMA to Kimball and left it unattended in a classroom drawer.

39. Complainant established that Ms. Riley found a ziplock bag containing various pills in the drawer of a table in respondent's classroom. When respondent was questioned about the pills, she admitted she brought the bag to school and that all the pills inside were hers. She then crafted multiple inconsistent explanations of what the pills were to evade responsibility for her misconduct. Respondent initially said the pills which tested positive for MDMA were vitamins. She then said they were iron pills or folic acid. In her testimony at hearing, she suggested she may have mistakenly taken her trazadone prescription to school, and that the trazadone may have cause a false positive test for MDMA. She told Mr. Munger the pills were not hers.

40. Ms. Paradiso tested two of the pills using the Abbott test after dissolving them in water. The test result was presumptive positive for MDMA. Ms. Paradiso, Dr. Patel, and Mr. Tran all testified that the Abbott test is intended to test urine for the presence of alcohol and drugs. However, they also all testified that it can also be used

to test pills by dissolving them in water. Immunoassay tests have existed for many years, and Dr. Patel testified that the accuracy of immunoassay tests has increased “tremendously” within the last decade. Even Mr. Tran acknowledged that immunoassay tests are reliable but cautioned that GCMS confirmatory analysis should be performed when possible.

41. Complainant proved by clear and convincing evidence that the pills Ms. Paradiso tested contained MDMA, and respondent’s testimony that the pills may have been iron, folic acid, or trazadone was unpersuasive for several reasons. First, there is no evidence that iron or folic acid can provide a false positive reaction for MDMA using an immunoassay test. Although there is evidence that trazadone can, the pills which tested positive here did not feature any of the markings required by the Code of Federal Regulations for a prescription medication in pill form. Moreover, trazadone is prescribed to help people sleep. There would be no reason for respondent to bring a sleep medication to school, particularly considering her testimony that she occasionally had to take green tea pills for energy to stay alert during the day.

42. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, the California Supreme Court concluded that a teaching credential cannot be disciplined for immoral conduct, unprofessional conduct, or conduct involving moral turpitude “unless that conduct indicates that the [educator] is unfit to teach.” (*Id.* at p. 229.) The Court outlined factors to consider when determining whether an educator’s conduct demonstrates unfitness to teach, which have been codified in California Code of Regulations, title 5, section 80302, subdivision (a). The factors are:

- (1) the likelihood that the conduct may have adversely affected students or fellow teachers, and the degree of such adversity anticipated;

- (2) the proximity or remoteness in time of the conduct;
- (3) the types of credentials held or sought by the person involved;
- (4) any extenuating or aggravating circumstances surrounding the conduct;
- (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct;
- (6) the likelihood of recurrence of the question conduct;
- (7) the extent to which disciplinary action may have an adverse impact or chilling effect on the constitutional rights of the person involved, or other teachers; and
- (8) the publicity or notoriety given to the conduct.

LIKELIHOOD OF ADVERSE EFFECTS ON STUDENTS OR OTHER TEACHERS

43. Respondent brought MDMA to Kimball and left it unattended in an unlocked drawer in her classroom. While there is no evidence that any students were adversely affected here, respondent's decision to bring the substance to school endangered the health and safety of her students and demonstrates a grievous lapse in the judgment expected of an educator.

PROXIMITY OR REMOTENESS IN TIME

44. Respondent brought the pills into her classroom during the fall semester of the 2022-2023 school year. At the present time, the offending conduct is more remote than proximate in time.

TYPES OF CREDENTIALS HELD OR SOUGHT

45. Respondent holds an expired Multiple Subject Teaching Credential.

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

46. Neither the Education Code nor the applicable regulations specify what constitutes "extenuating circumstances." However, California Code of Regulations, title 5, section 80300, subdivision (m), defines "mitigating factor" as "an event or circumstance which demonstrates that the public, school children and the profession would be adequately protected by a more lenient degree of adverse action or no adverse action whatsoever." California Code of Regulations, title 5, section 80300, subdivision (b), lists aggravating factors, the presence of which indicate a greater degree of discipline is necessary to protect students and the teaching profession. These factors include, in pertinent part: (1) a prior record of adverse action; (2) that the misconduct significantly harmed a child, the public, or the educational system; and (3) the credential holder demonstrated indifference toward the consequence of the misconduct.

47. Respondent has no prior record of discipline with the Commission. As explained above, no child was harmed by respondent's misconduct. However, a child could have been significantly harmed if they had ingested the MDMA in respondent's drawer. That respondent did not appreciate that danger demonstrates her indifference toward the potential consequences of bringing MDMA into her classroom.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF MOTIVES

48. There was nothing praiseworthy about respondent's actions. She brought an illegal drug into her classroom where her students could have accessed it.

LIKELIHOOD OF RECURRENCE

49. Respondent resigned from TUSD, effective May 31, 2023. The likelihood of the conduct recurring, at least at Kimball or any other TUSD school, is minimal.

CHILLING EFFECT

50. There is no evidence that disciplining respondent would have a chilling effect on respondent's constitutional rights or the constitutional rights of other educators.

PUBLICITY OR NOTORIETY GIVEN TO CONDUCT

51. No evidence was presented that the conduct at issue was either publicized or notorious.

Conclusion

52. Complainant bears the burden of proving by clear and convincing evidence that respondent engaged in immoral conduct, unprofessional conduct, and conduct involving moral turpitude which indicates she is unfit to teach. When all the evidence is considered in light of the *Morrison* factors, complainant has met her burden.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. Complainant bears the burden of proving the allegations in the Accusation by clear and convincing evidence to a reasonable certainty. (*Gardner v.*

Commission on Professional Competence (1985) 164 Cal.App.3d 1035.) Clear and convincing evidence requires proof that is so clear as to leave no substantial doubt and that is sufficiently strong to command the unhesitating assent of every reasonable mind. (*In re Marriage of Brooks* (2008) 169 Cal.App.4th 176, 190.)

Applicable Law

2. Pursuant to the Education Code, commencing with section 44000, and California Code of Regulations, title 5, commencing with section 80000, the Commission is responsible for credentialing teachers in public schools in California, including issuing credentials and taking adverse action against applicants and credential holders.

3. Education Code section 44345 provides in part:

The Commission may deny any application for the issuance of a credential or for the redential of a credential made by an applicant who falls under any of the following categories:

[¶] . . . [¶]

(e) Has committed any act involving moral turpitude.

[¶] . . . [¶]

Any denial pursuant to subdivisions (a) to (e), inclusive, shall be based upon reasons related to the applicant's fitness to teach or fitness to perform other duties which the credential would authorize the applicant to perform.

4. Moral turpitude has been described as “any crime or misconduct committed without excuse, or ‘any dishonest or immoral’ act not necessarily a crime.” (*Clerici v. Department of Motor Vehicles* (1990) 224 Cal.App.3d 1016, 1017.)

5. Education Code section 44421 provides in part:

The Commission on Teacher Credentialing shall privately admonish, publicly reprove, revoke, or suspend for immoral or unprofessional conduct, or for persistent defiance of, and refusal to obey, the laws regulating the duties of persons serving in the public school system, or for any cause that would have warranted the denial of an application for a credential or the renewal thereof, or for evident unfitness for service.

6. The California Supreme Court has recognized that the terms “immoral conduct” and “unprofessional conduct” substantially overlap one another and conduct that constitutes one often includes the other. (*Morrison v. State Bd. of Ed.*, *supra*, 1 Cal.3d 214, 221, fn. 9.) Additionally, in *San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, the court explained:

Moreover, the definition of immoral or unprofessional conduct must be considered in conjunction with the unique position of public school teachers, upon whom are imposed “responsibilities and limitations on freedom of action which do not exist in regard to other callings.” [Citation.]

(*Id.*, at p. 1466.)

7. Immoral conduct is sometime considered as synonymous with "dishonesty" or a high degree of unfairness. (*Board of Education of the San Francisco Unified School District v. Weiland* (1960) 179 Cal.App.3d 8089, 811.) The court explained in *Palo Verde Unified School District of Riverside v. Hensey* (190) 9 Cal.App.3d 967, 972:

The term "immoral" has been defined as that which is hostile to the welfare of the general public and contrary to good morals. Immorality includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.

8. "Evident unfitness for service" means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. (*Woodland v. Joint Unified School District v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

9. Education Code section 44440, subdivision (b), provides:

The suspension or expiration of any credential, its surrender without the written consent of the commission, or a

revocation pursuant to Section 44423 does not deprive the commission of its authority to do the following:

- (1) Institute or continue a disciplinary proceeding against the credential holder upon any ground provided by law.
- (2) Enter an order suspending or revoking the credential.
- (3) Issue a public reproof or private admonition to the credential holder.

10. California Code of Regulations, title 5, section 80300, states in part:

[¶] . . . [¶]

(b) "Aggravating factor" is an event or circumstance which demonstrates that a greater degree of adverse action for an act of professional misconduct is needed to adequately protect the public, schoolchildren or the profession.

Aggravating factors may include, but are not limited to, the following:

[¶] . . . [¶]

(3) that the misconduct was surrounded by or followed by bad faith, dishonesty or other violations of the laws governing educators;

[¶] . . . [¶]

11. As set forth in Factual Finding 42, California Code of Regulations, title 5, section 80302, subdivision (a), sets forth the factors to consider "to determine the relationship between the alleged misconduct and the applicant's or holder's fitness, competence, or ability to effectively perform the duties authorized by the credential."

Causes for Discipline

12. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent engaged in unprofessional conduct when she possessed MDMA in her classroom. Consequently, cause exists to discipline her credential, pursuant to Education Code section 44421.

13. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent's possession of MDMA in her classroom demonstrates her evident unfitness for service. Consequently, cause exists to discipline her credential, pursuant to Education Code section 44421.

14. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts of moral turpitude by possessing MDMA in her classroom. Consequently, cause exists to discipline her credential, pursuant to Education Code sections 44421 and 44345, subdivision (e).

15. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent engaged in immoral conduct by possessing MDMA in her classroom.

Aggravating Factor

16. Respondent has now provided multiple inconsistent explanations of what the pills found in her classroom are and who they belong to. Her bad faith and dishonesty are aggravating factors to be considered in determining the appropriate discipline.

Appropriate Discipline

17. Pursuant to Education Code section 44421, the Commission shall privately admonish or publicly reprove a credential holder, or revoke or suspend her credential, if the credential holder has engaged in immoral or unprofessional conduct, action that warrants denial of an application for a credential or the renewal thereof, or is evidently unfit for service. Careful consideration has been given to the available disciplinary options. Even assuming respondent's possession of MDMA in her classroom was an isolated incident, it represents a grievous lapse in judgment expected of an educator. When all the evidence is considered, complainant demonstrated that respondent is unfit to teach, and revocation of her credential is necessary to protect children, the public, and the teaching profession.

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ORDER

The Clear Multiple Subject Teaching Credential issued to respondent Jacqueline Khamsy Palafox, aka Jacqueline Khamsy Bounponechannita, by the California Commission on Teacher Credentialing is REVOKED.

DATE: March 13, 2025

Matthew Block

MATTHEW S. BLOCK

Administrative Law Judge

Office of Administrative Hearings